Chapter I

Article 1. Definitions

A covered service stores customer-created records and offers them through a digital interface. The operator controls that service. A portable copy contains all customer-created records in an interoperable machine-readable format. A fulfillment provider is a separate entity selected by the operator to run its export software. These definitions apply throughout this instrument.

Article 2. Export and portability

1. The operator of a covered service must implement a software export function that produces a portable copy for a requesting customer. The operator must deliver the copy within seven calendar days after receiving the request.

The implemented export function and actual timely delivery are distinct aspects: configured software alone does not establish fulfillment of an individual request.

2. The operator must not impose commercial charges or technical obstacles intended to prevent a customer moving their customer-created records to another service. For both charges and obstacles, this prohibition is limited to those intended to prevent that portability; it does not prohibit charges generally. The limited exception in Article 3(2) applies.

Article 3. Remedy and exception

1. If failure to perform Article 2(1) causes a customer documented financial loss, the operator must compensate that customer for the documented loss within thirty calendar days after receiving notice of the loss. A compensation policy alone does not perform this payment duty.

2. As an exception to Article 2(2), the operator may temporarily block a transfer only while a documented, specific security threat makes that transfer unsafe. The block must be proportionate to that threat and end when the threat ends. This exception does not remove or delay the portable-copy duty in Article 2(1).

Chapter II

Article 4. Temporal transition

This instrument takes effect on 1 January 2026. For covered services already operating before that date, the duties in Article 2(1) and Article 2(2) become applicable on 1 July 2026 after a six-month transition.

For covered services first operating on or after 1 January 2026, those duties apply immediately on first operation.

Article 5. Incorporated duties

When an operator delegates export fulfillment to an external fulfillment provider, that provider must implement the portable-copy software function and perform the same delivery duty required by Article 2(1), with the same seven-day period and the definitions in Article 1. Delegation does not remove the operator's own duty.

Article 6. Context and separate configuration duties

1. Repository storage means the storage surface used by the covered service for customer-created records. An audit entry means the event record about an export request. This paragraph supplies context and definitions; it creates no independent duty, prohibition or permission.

2. The operator must maintain a software configuration identifying the relevant covered service. For its export function, the operator must record the authorization decision in an audit entry and must record completion or failure with its timestamp in the audit entry. These two audit duties are compatible and both must survive a combined representation. The operator must implement appropriate software safeguards protecting customer-created records during processing and export. A repository assessment may inspect storage encryption as one narrower evidence slice; this does not replace the safeguards duty or require a particular cipher.

Article 7. Delegated fulfillment and direction

Actor A is the covered-service operator and holder of Article 2(1). Actor B is the fulfillment provider. If A delegates export fulfillment to B, A must maintain a software configuration identifying B as its delegate for that service, and B must implement the delegated portable-copy software path on behalf of A. B performs fulfillment while A remains responsible for Article 2(1). B's express duty in Article 5 does not transfer or replace A's duty. B delegating to A is not this condition. The customer is the requesting record owner and beneficiary; an auditor owes no export-fulfillment duty.

Article 8. Conditional permission and evidence

The operator may restrict access to the export interface only while a documented, specific security incident makes access unsafe. The restriction must end when that condition ceases. Evidence must demonstrate whether that condition holds and whether any restriction respects it. This Article does not require automatic blocking, automatic unblocking, or any other particular technical implementation.